

OREGON STATE HOSPITAL

POLICY

SECTION 8: Safety, Security, Emergency Management

POLICY: 8.018

SUBJECT: Unauthorized Leave Events

POINT PERSON: Director of Security

APPROVED: Dolores Matteucci

DATE: JANUARY 24, 2024

Dolores Matteucci

Superintendent

SELECT ONE: ☐ New policy

☐ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☒ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes definitions and procedures for patient unauthorized leave events for Oregon State Hospital (OSH).
- B. This policy applies to all staff.

II. POLICY

- A. OSH staff are responsible to take reasonable and lawful actions as directed by this policy to attempt to return a patient who leaves the hospital's care and custody without authorization. This includes all admitted OSH patients, including those placed in OSH-operated on-campus residential treatment facilities.
- B. If a patient leaves OSH without authorization, staff must follow procedures A for response and reporting.
- C. External assistance for unauthorized leave may be requested as directed by the Director of Security.
 - 1. OSH must contact law enforcement for assistance with any unauthorized leave of a patient under forensic or civil commitment.
 - 2. For a voluntarily admitted patient, including a patient voluntarily admitted by guardian, OSH may contact law enforcement for assistance as directed by the Director of Security. The responding law enforcement officer determines whether to take the patient into custody.

3. For a patient under forensic “aid and assist” or “guilty except for insanity” (GEI) commitment, the Superintendent or their designee may issue an order that creates a warrant for the patient’s arrest and detention according to Oregon Revised Statute (ORS) 161.375.

D. Protected information and other information disclosure:

1. OSH may disclose information about a patient on unauthorized leave or attempting unauthorized leave if:
 - a. It is considered necessary to prevent or lessen a serious and imminent threat to the health or safety of a person or the public, and
 - b. The disclosure is made to a person or entity who is reasonably able to prevent or lessen the threat (e.g., law enforcement or the target of the threat) per 45 CFR 164.512 (j)(i).
2. OSH may only notify victims of a patient on unauthorized leave in cases where there is a direct threat to that victim under the above provision or when OSH has been ordered by a court of competent jurisdiction to provide such notification.
3. If a patient under the jurisdiction of the Psychiatric Security Review Board (PSRB), Oregon Youth Authority, or Department of Corrections is on unauthorized leave, OSH must immediately report their status to the applicable agency.
4. If a patient was committed to OSH for arson or arsonist activity, OSH must immediately report their status to the State Fire Marshal and the Department of State Police.

E. Incidents must be reported internally per OSH policy 1.003, “Incident Reporting.”

1. OSH Incident Report System Investigators (IRSI) reviews reported incidents and may reclassify an incident based on the circumstances of the event.
2. Staff must also review OSH policy 2.012, “Sentinel Events,” for incidents meeting the definition of unauthorized leave and significant attempt of unauthorized leave.

F. In the case of unattended/wandering, staff must follow this policy and OSH policy 6.024, “Transportation and Supervision Ratios.”

G. The medical record for a patient on unauthorized leave remains subject to confidentiality laws and hospital policy.

- H. Patient property items for a patient on unauthorized leave are subject to OSH policy 8.037, "Patient Property and Valuables: Handling and Storage."
- I. Staff must immediately notify the Superintendent or designee of a significant attempt of unauthorized leave.
- J. Staff shall follow Procedures B for patient return to OSH following both a significant attempt and successful unauthorized leave.
- K. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- L. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Civil commitment," or "civil patient" for the purposes of this policy means a patient who is civilly committed per Oregon Revised Statute (ORS) 426.130 by order of a judge. A civil patient is not the same as a patient civilly committed under the forensic jurisdiction of the Psychiatric Security Review Board (PSRB) per ORS 426.701.
- B. "Forensic commitment," for the purposes of this policy means a patient committed to OSH under the following forensic jurisdictions:
 - 1. Psychiatric Security Review Board (PSRB), which includes Guilty Except for Insanity (GEI) under Oregon Revised Statute (ORS) 161.327 and civil commitment under ORS 426.701;
 - a. "Forensic commitment" or "forensic patient" does not include civil commitment under ORS 426.130.
 - 2. GEI-misdemeanor under ORS 161.328;
 - 3. Dual Department of Corrections (DOC) jurisdiction (see ORS 179.473); or
 - 4. Aid and assist (".370") order under ORS 161.370.
- C. "Non-significant attempt of unauthorized leave" means a person tried an unauthorized leave but did not have the means, capability, or opportunity to be successful. Examples include, but are not limited to:
 - 1. A patient evades observation of staff while inside the secure perimeter but did not make it inside of a sally port.

2. A patient walks away from a group on an on-grounds outing and staff redirect the patient without physical intervention and never leave OSH property,
 3. A patient is physically restrained while attempting to leave OSH property boundary when inside the secure perimeter. (NOTE: A patient physically restrained while attempting to leave OSH property boundary that has made it inside of a sally port qualifies as a significant attempt of unauthorized leave).
- D. "Off-grounds" is as defined in OSH policy 6.006. Off-grounds means any area outside the boundaries of the Salem and Junction City campus grounds.
- E. "On-grounds" is as defined in OSH policy 6.006. On-grounds means any area outside the secure perimeter (e.g., outside a sallyport), while still on the OSH grounds (Salem or Junction City).
1. On-grounds areas on the Salem campus include the Empowerment Center; Kirkbride building floors 2, 3, and 4; the OSH Museum; Cottages; tennis court parking lots and roadways; and the OSH disc golf courses.
 2. On-grounds areas on the Junction City campus include the Education and Development Department classrooms, National Alliance on Mental Illness (NAMI) office, administration second-floor areas, community gardens, NAMI memorial garden, challenge course (outside obstacle course), disc golf course, fruit orchard, parking lots and roadways, and the access road.
- F. "Secure perimeter" is as defined in OSH policy 6.006, "On-grounds and Off-grounds Movement. Secure perimeter means restricted high-security buildings, areas, and quads within the sallyport exits operated to manage movement of persons within the OSH campus. The secure perimeter areas include all quads, the ball field, and Medical Clinic.
1. The secure perimeter for Salem is per OSH policy 6.006, Attachment B, and includes the Kirkbride café, chart rooms on every unit, and the cubicle areas other than in Kirkbride building (floors 2-4).
 2. The secure perimeter for Junction City is per OSH policy 6.006, Attachment C, and includes the Valley café, chart rooms on every unit, and the first floor cubicle area.
- G. "Significant attempt of unauthorized leave" means a patient tried an unauthorized leave and had the means and capability to be successful but was not successful. Examples of a significant attempt of unauthorized leave include, but are not limited to:
1. A patient attempts to depart the secure perimeter and makes it inside a sally port but does not depart OSH secure perimeter.

2. A patient is physically restrained while attempting to leave OSH property boundary when outside the secure perimeter.
 3. A patient attempts to scale a secure perimeter wall but does not exit the secure perimeter.
- H. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- I. "Unattended/wandering" means a patient was found by staff in an area where they are not supposed to or expected to be in (on or off unit), the patient is without appropriate supervision within the secure perimeter and the event does not rise to any level of attempt of unauthorized leave.
1. Examples of unattended/wandering include, but are not limited to:
 - a. A patient gets left out of a staff count and unintentionally left behind.
 - b. A patient is found unescorted on a treatment mall during non-treatment mall hours.
 - c. A patient is found in a staff only area.
 - d. A patient is found in a treatment mall library without staff supervision.
- J. "Unauthorized leave" means a patient:
- a. Successfully leaves OSH boundaries without reasonable ability for staff to pursue the patient, or
 - b. Leaves the supervision of staff without authorization and is out of the line of sight while outside the secure perimeter (this includes a patient overstaying an off-grounds pass).

IV. PROCEDURES

Procedures A Staff Response to Unauthorized Leave

Procedures B Patient Return to OSH Following an Unauthorized Leave or Significant Attempt

V. RELATED OSH POLICIES AND PROTOCOLS

2.008 Privacy and Security of Patient Information

2.012 Sentinel Event

6.002 Authorized Person Passes

6.003 Seclusion and Restraints

6.006 On-grounds and Off-grounds Movement

6.021 Release of Information and Communication with Patient Families and Others

6.024 Transportation and Supervision Ratios

8.037 Patient Property and Valuables: Handling and Storage

8.039 Secure Transport Restraints

VI. REFERENCES

45 CFR §164.512(a), (f)(2), (f)(5), (j)(1)(i), (j)(1)(ii)(B).

Oregon Administrative Rule §309-033-02300300(4).

Oregon Administrative Rule §309-033-0520(2)(b)

Oregon Administrative Rule §309-091-0010.

Oregon Revised Statute §133.225.

Oregon Revised Statute §161.225.

Oregon Revised Statute §161.315.

Oregon Revised Statute §161.326 – §161.328.

Oregon Revised Statute §161.365.

Oregon Revised Statute §161.370.

Oregon Revised Statute §161.375.

Oregon Revised Statute §162.155.

Oregon Revised Statute §162.165.

Oregon Revised Statute §162.175.

Oregon Revised Statute §179.473.

Oregon Revised Statute §179.505

Oregon Revised Statute §181A.185.

Oregon Revised Statute §426.130.

Oregon Revised Statute §426.220 §426.223.

Oregon Revised Statute §426.150.

Oregon Revised Statute §426.220.

Oregon Revised Statute §426.223.

Oregon Revised Statute §426.225.

Oregon Revised Statute §426.231 – §426.232.

Oregon Revised Statute §426.650.

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Oregon Revised Statute §426.675.

Oregon Revised Statute §426.701 – §426.702.

Oregon Revised Statute §427.290.

Oregon Revised Statute §476.730.